

STATE OF NEW YORK

9626--A

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. P. CARROLL, BURDICK, ROSENTHAL, HYNDMAN, McMAHON, SCHIAVONI, SIMONE -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to absentee ballot drop boxes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 8-416 of the election law, as
2 amended by chapter 109 of the laws of 2025, is amended to read as
3 follows:

4 2. (a) Each board of elections is hereby [~~authorized~~] **required** to
5 establish **at least** one [~~or more~~] ballot drop-off [~~locations~~] **location** as
6 an additional means for the delivery of absentee or early voting ballots
7 marked by a voter to the board of elections of the county or city of the
8 voter's residence. Each such board of elections shall provide notice of
9 the location of every such ballot drop-off location by posting such
10 information on its website no later than the day the ballot drop-off
11 location is established. Nothing in this section shall preclude each
12 board of elections from establishing in its discretion additional ballot
13 drop-off locations as it deems necessary.

14 (b) In the discretion of the board of elections, ballot drop boxes may
15 be placed at public facilities including, but not limited to, town
16 halls, village halls, libraries, and/or county clerks offices. The
17 ballot drop boxes shall be established at least forty-five days before
18 the relevant election.

19 § 2. This act shall take effect on the sixtieth day after it shall
20 have become a law and shall apply to elections conducted on and after
21 such effective date. Effective immediately, the addition, amendment
22 and/or repeal of any rule or regulation necessary for the implementation
23 of this act on its effective date are authorized to be made and
24 completed on or before such effective date.

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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